

30 days to provide dates certain is not reasonable considering the Notice of Taking Videotaped Depositions and Request for Production of Documents was served on March 26, 2026.

Plaintiffs' Motion to Compel Attendance at Depositions is **GRANTED**. Defendants are ordered to provide dates certain for all seven witnesses depositions within fifteen (15) days of service of Notice of Entry of Order. Rose Hervegault, Lauri Cruz, Jerilyn Baucum, and Cynthia Bradley are to be deposed first, with the Vice President of Operations, Regional Director of Clinical Operations, and Regional Clinical Nurse to follow. A proposed order has been lodged and will be modified to reflect the Court's ruling.

AXIOM REPERTORY THEATRE VS. CHARITY ONE INSURANCE AGENCY, ET AL.

CASE NUMBER: 26CV-0209907

Tentative Ruling on Application to Appear Pro Hac Vice: Owen R. Mooney, an attorney admitted to practice law in the States of Texas and Washington, seeks admission pro hac vice in order to represent Defendant Great American Assurance Company. California Rule of Court, Rule 9.40 provides the procedural requirements for a pro hac vice application and requires a verified application with the following information:

- (1) the applicant's residence and office address;
- (2) the courts to which the applicant has been admitted to practice and the dates of admission;
- (3) that the applicant is a member in good standing in those courts;
- (4) that the applicant is not currently suspended or disbarred in any court;
- (5) the title of court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and
- (6) the name, address, and telephone number of the active member of the State Bar of California who is attorney of record.

CRC 9.40(d).

Rule 9.40(c)(1) also requires service of the application on all parties that have appeared and on the State Bar. The State Bar also requires payment of a fee. The notice requirements of CCP § 1005 apply and proof of service in accordance with CCP § 1013a is required.

The Application is verified and contains all the information required by Rule 9.40(d). The Application was timely filed and properly noticed. The fee to the State Bar has been paid. The Application is **GRANTED** and the Court will execute the proposed Order.

BURNS VS. MCCrackEN

CASE NUMBER: 26CH-0210350

Tentative Ruling on Motion for Attorney's Fees: Respondent Dustin McCracken moves for attorney's fees and costs pursuant to CCP § 527.6(s). The motion is procedurally defective.

Procedural Defects: The Notice of Motion identifies two different hearing dates. The caption identifies the hearing date as July 20, 2026. The body of the Notice identifies the hearing date as July 13, 2026. The proof of service is also defective. It identifies the person served as "Tyler Maize Lalaguna," who is in fact the individual that served the motion. Based on these defects, Petitioner objects to the motion and request it be denied due to the notice issues. Petitioner's opposition was untimely and fails to provide any evidence that he was prejudiced or actually misled by the discrepancies. Petitioner's opposition also admits that motion was actually received by the Petitioner. The Court finds that the motion is procedurally defective; however, the defects are curable. The Court will continue the matter for proper notice/service.

Lack of Evidence: The motion is supported by the Declaration of Tyler Lalaguna to justify the amount of the

requested attorney's fees and costs. The declaration is defective. The declaration was not signed under penalty of perjury and therefore the Court has no evidence to support the requested relief. The defect is easily curable.

In light of the foregoing defects, the Court continues this matter to **Monday, August 31, 2026, at 11:00 a.m. in Department 63.** The matter will be heard on the Court's normal 11:00 civil harassment restraining order calendar. Respondent shall file and timely serve an Amended Notice of Hearing for the continued hearing date. Respondent shall also file and timely serve an amended declaration signed under penalty of perjury. Petitioner can file a supplemental opposition nine court days prior to the continued hearing date. Respondent can file a supplemental reply five court days prior to the continued hearing date. **No appearance is necessary on today's calendar.**

BUTLER, III VS. SHOEMAKER

CASE NUMBER: 25CV-0208353

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on April 30, 2026 to Plaintiff John Butler III and counsel, Law Office of Natalie R. Ludwig for failure to timely serve Defendant as required by CRC 3.110(b). "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). The Complaint in this matter was filed on August 4, 2025. On June 11, 2026, Plaintiff filed a declaration, however, the information in that declaration shows only minimal effort toward service of Defendant and provides no information on the dates that the efforts were made. Plaintiff's counsel appeared at the hearing on the Order to Show Cause on June 15, 2026 and informed the Court that an address had been located for Defendant and that the documents were out for service with the Sheriff's Office. It is now one month later and no Proof of Service of Summons has been filed. Plaintiff has not provided any further written response explaining the delay. With no sufficient excuse for the delay, sanctions are imposed against Plaintiff and counsel in the amount of \$250. The clerk is directed to issue a separate Order of Sanctions.

GERLINGER FOUNDRY AND MACHINE WORKS, INC. VS. CONXTECH, INC.

CASE NUMBER: 26CV-0209989

Tentative Ruling on Motion to Set Aside and Enter Judgment Pursuant to CCP §§ 473(b) and 664.6: Plaintiff Gerlinger Foundry and Machine Works, Inc. moves to set aside the dismissal entered on May 7, 2026 under CCP § 473(b) and to enforce the settlement agreement attached to the Declaration of Eric Woodstrom as Exhibit A pursuant to CCP § 664.6. Defendant Conxtech, Inc. opposes the motion.

Request for Judicial Notice. Defendant requests the Court take judicial notice of the Request for Dismissal filed on May 7, 2026. The request is granted pursuant to Evid. Code §§ 452(d) and 453.

Merits. Prior to reaching any other part of this motion, the Court must consider whether the dismissal entered on May 7, 2026 should be set aside pursuant to CCP § 473(b).

The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. ... Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will